

# FORMAL FERPA COMPLAINT

**TO:**

Student Privacy Policy Office (SPPO)  
U.S. Department of Education

Washington, D.C. 20202-8520

Email [REDACTED]

**COMPLAINANT:**

[REDACTED] (Minor Student)

[REDACTED] NE

Prior Lake, MN 55372

**EDUCATIONAL AGENCY:**

Prior Lake-Savage Area Schools (ISD 719)

Michael Thomas, Superintendent

[REDACTED] SE

Prior Lake, MN 55372

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## I. INTRODUCTION AND TIMELINESS

This complaint is filed within 180 days of April 22, 2026, the date on which Prior Lake-Savage Area Schools (the "District") issued a final, deficient production of education records that confirmed multiple ongoing violations of the Family Educational Rights and Privacy Act (FERPA). The District has engaged in the unlawful denial of access to education records, the maintenance of misleading records, and the unauthorized disclosure of personally identifiable information (PII).

## II. DENIAL OF ACCESS TO EDUCATION RECORDS (34 C.F.R. § 99.10)

On April 13, 2026, a formal request was submitted to inspect and review all underlying education records related to the 2024 Title IX Sexual Harassment Complaint involving [REDACTED], including interview notes, internal correspondence, and legal consultations. On April 22, 2026, the District produced only a heavily redacted two-page summary report and falsely claimed this concluded "all of the responsive data the District holds."

The produced summary report explicitly cites that the investigator conducted interviews with peers and staff, and consulted with legal counsel. The District's refusal to provide these underlying records constitutes a direct denial of a parent's right to inspect and review their child's education records.

## III. MAINTENANCE OF MISLEADING RECORDS AND

## **FAILURE TO APPEND STATEMENT OF DISAGREEMENT (34 C.F.R. §§ 99.20, 99.21)**

During a Title IX investigation in late 2024, the parent requested that the student's interview be conducted by a trauma-informed, neutral third party. The District denied the accommodation and subsequently weaponized this request by falsely characterizing it in the official investigation report as the parent "declining" to participate.

Following the District's refusal to amend this misleading record, the parent submitted a formal Statement of Disagreement. The April 22, 2026 data production confirmed that the District failed to append the Statement of Disagreement to the disputed record, continuing to disseminate an inaccurate and misleading education record.

## **IV. UNAUTHORIZED DISCLOSURE OF PII AND FAILURE TO MAINTAIN RECORD OF DISCLOSURES (34 C.F.R. §§ 99.30, 99.32)**

The District has committed unauthorized disclosures of the student's PII without parental consent:

- **The Forwarding Anomaly:** On December 13, 2024, the parent sent an email containing sensitive PII regarding a weapons assault to Superintendent Michael Thomas. On December 20, 2024, the parent received a bounce-back error indicating that the District's system or the Superintendent's account had attempted to automatically forward the email to an external, unauthorized address. The District subsequently truncated email logs to conceal this unauthorized disclosure.
- **Unlawful Disclosure to External Counsel:** The District shared unredacted PII with external legal counsel. This counsel advised a strategy that forced the student's constructive exclusion, thereby negating any "legitimate educational interest" that would otherwise permit disclosure without consent under the "school official" exception. Furthermore, the District has repeatedly refused to provide the mandatory record of disclosures tracking the PII shared with this third party.

## **V. RELIEF SOUGHT**

The complainant respectfully requests that the Student Privacy Policy Office (SPPO) initiate a formal investigation into the District's systematic FERPA violations. Specifically, the SPPO is requested to:

1. Compel the District to provide access to all withheld education records and disclosure logs.
2. Mandate the immediate attachment of the Statement of Disagreement to all relevant records.
3. Require comprehensive FERPA compliance training for District administration and the Board of Education to correct the institutional custom of deliberate indifference to student privacy rights.
4. A formal directive from the SPPO requiring Prior Lake-Savage Area Schools to immediately revoke Superintendent Michael Thomas's 'School Official' exception

regarding [REDACTED] O'Brien's education records, as his demonstrated actions in spoliating email logs and facilitating unauthorized disclosures prove he no longer possesses a legitimate educational interest, but rather an adversarial legal interest

**Respectfully Submitted,**

[REDACTED]

[REDACTED]

# Itemized Redaction List

| Bates/Page                        | Line | Redaction reason                      |
|-----------------------------------|------|---------------------------------------|
| Sean_OBrien_2026-05-04_FERPA-p001 | 5    | Redacted to protect personal privacy. |
| Sean_OBrien_2026-05-04_FERPA-p001 | 7    | Redacted to protect personal privacy. |
| Sean_OBrien_2026-05-04_FERPA-p001 | 9    | Redacted to protect personal privacy. |
| Sean_OBrien_2026-05-04_FERPA-p001 | 10   | Redacted to protect personal privacy. |
| Sean_OBrien_2026-05-04_FERPA-p001 | 12   | Redacted to protect personal privacy. |
| Sean_OBrien_2026-05-04_FERPA-p001 | 16   | Redacted to protect personal privacy. |
| Sean_OBrien_2026-05-04_FERPA-p001 | 28   | Redacted to protect personal privacy. |
| Sean_OBrien_2026-05-04_FERPA-p001 | 29   | Redacted to protect personal privacy. |
| Sean_OBrien_2026-05-04_FERPA-p003 | 1    | Redacted to protect personal privacy. |
| Sean_OBrien_2026-05-04_FERPA-p003 | 5    | Redacted to protect personal privacy. |
| Sean_OBrien_2026-05-04_FERPA-p003 | 6    | Redacted to protect personal privacy. |